



CHAPTER ii

An Act to confirm a Scheme of the Charity Commissioners for the application or management of certain charities in the County of Kent. [29th March 1955.]

WHEREAS the Charity Commissioners in their Report to Her Majesty of their proceedings during the year one thousand nine hundred and fifty-three reported that they had approved and certified a Scheme for the application or management of the following charities in the county of Kent:—

1. The Charity of Richard Watts applicable under the provisions of an order of the High Court of Chancery of the 9th June 1828 in ease of the rates assessed on the inhabitants of such part (sometime known as Chatham Intra) of the Ancient Parish of Chatham as lay within the liberties limits and precincts of the Ancient City of Rochester;
2. The Charity of Sir Edmund Gregory in the Ancient Town of Chatham;
3. The Charity of Samson Burford in the Ancient Town of Chatham;
4. The Charity of Alfred Mannerings in the Borough of Chatham:

And whereas it is expedient that the Scheme as the same is fully set out and defined in the schedule to this Act should be confirmed:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Confirmation
of Scheme.

1. The said Scheme is hereby confirmed Provided always that nothing in this Act or in the said Scheme shall be held to interfere with the ordinary jurisdiction over endowed charities now exercisable by the High Court of Justice and the Charity Commissioners.

Short title.

2. This Act may be cited as the Chatham Intra Charity of Richard Watts and other Charities Scheme Confirmation Act 1955.

SCHEDULE

SCHEME FOR THE APPLICATION OR MANAGEMENT OF
THE FOLLOWING CHARITIES IN THE COUNTY OF
KENT:—

1. THE CHARITY OF RICHARD WATTS APPLICABLE UNDER THE PROVISIONS OF AN ORDER OF THE HIGH COURT OF CHANCERY OF THE 9TH JUNE 1828 IN EASE OF THE RATES ASSESSED ON THE INHABITANTS OF SUCH PART (SOMETIME KNOWN AS CHATHAM INTRA) OF THE ANCIENT PARISH OF CHATHAM AS LAY WITHIN THE LIBERTIES LIMITS AND PRECINCTS OF THE ANCIENT CITY OF ROCHESTER;
2. THE CHARITY OF SIR EDMUND GREGORY IN THE ANCIENT TOWN OF CHATHAM FOUNDED BY WILL DATED THE 24TH APRIL 1710;
3. THE CHARITY OF SAMSON BURFORD IN THE ANCIENT TOWN OF CHATHAM FOUNDED BY WILL PROVED IN THE PRINCIPAL REGISTRY ON THE 22ND MARCH 1922;
4. THE CHARITY OF ALFRED MANNERINGS IN THE BOROUGH OF CHATHAM FOUNDED BY WILL PROVED IN THE PRINCIPAL REGISTRY ON THE 26TH MAY 1924.

1. *Administration of Charities.*—The above-mentioned Charities and the endowments thereof specified in the schedule hereto and all other the endowments (if any) of the Charities shall be administered and managed subject to and in conformity with the provisions of this Scheme.

2. *Investments and cash.*—All investments now or at any time belonging to the Charities and not already standing in the name of the Official Trustees of Charitable Funds shall be transferred under the authority of further orders of the Charity Commissioners into the name of the said Official Trustees. All sums of cash now or at any time belonging to the Charities and not needed for immediate working purposes shall be invested (unless otherwise ordered) as soon as possible under the like authority in the name of the said Official Trustees.

CHARITY NUMBERED 1 ABOVE

3. *Administration.*—The Charity numbered 1 above shall be administered and managed under the title of the Chatham Intra Charity of Richard Watts by the body of Trustees known as the Municipal Trustees of the City of Rochester who shall be the Trustees of the said Charity numbered 1.

4. *Application of income.*—The Trustees of the said Charity numbered 1 shall apply the clear yearly income thereof in providing comforts and amenities or otherwise in such manner as the Trustees think fit for the benefit of the inmates of the almshouses and any homes for old people for the time being belonging to the Charity of Richard Watts in the City of Rochester.

CHARITIES NUMBERED 2 3 AND 4 ABOVE

5. *Administration.*—The Charities numbered 2 3 and 4 above (hereinafter referred to as the Charities for the poor) shall be administered and managed by the body of Trustees hereinafter constituted.

6. *Trustees.*—The body of Trustees of the Charities for the poor shall consist when complete of sixteen competent persons being—

Two Ex-officio Trustees;
Eight Representative Trustees; and
Six Co-optative Trustees.

7. *Ex-officio Trustees.*—The Ex-officio Trustees shall be—

The MAYOR of Chatham; and
The RECTOR of Chatham;

both for the time being.

8. *Representative Trustees.*—The Representative Trustees shall be appointed by the Council of the Borough of Chatham (hereinafter referred to as the Borough Council) Subject as hereinafter provided for the first Representative Trustees and for casual vacancies in the office of Representative Trustee each appointment shall be made for a term of four years at a meeting convened and held according to the ordinary practice of the Borough Council The chairman of the meeting shall cause the name of each person appointed to be notified forthwith to the Trustees of the Charities for the poor or their clerk The person appointed may be but need not be a member of the Borough Council.

9. *First Representative Trustees.*—The first Representative Trustees shall be appointed as soon as possible after the date hereof and their names shall be notified to the said Mayor on behalf of the Trustees of the Charities for the poor Four of the first Representative Trustees shall be appointed for a term of four years and four for a term of two years.

10. *Co-optative Trustees.*—The Co-optative Trustees shall be persons residing or carrying on business in or near the Borough of Chatham.

11. *First Co-optative Trustees.*—The following persons all residing in the Borough of Chatham shall be the first Co-optative Trustees and subject to the provisions hereinafter contained for determination of trusteeship shall be entitled to hold office for the following periods respectively:—

EDWARD WILLIAM BOORMAN of 6 Purbeck Road Retired Headmaster;

ALEC LEONARD GARRETT of 170 Chatham Hill Departmental Manager; and

BERTHA GRIEVESON of 127 Rochester Street Married Woman all for five years from the date of this Scheme; and

JAMES GLEESON of 158 Rochester Street Retired Civil Servant;

CHARLES ERNEST HARVEY of 183 Maidstone Road Retired Schoolmaster; and

VICTOR WILFRED PARDY of 27 Gordon Road Sewing Machine Mechanic all for three years from the date of this Scheme.

12. *Future Co-optative Trustees.*—Every future Co-optative Trustee shall be appointed for a term of five years by a resolution of the Trustees of the Charities for the poor to be passed at a special meeting.

13. *Declaration by Trustees.*—No person shall be entitled to act as a Trustee whether on a first or on any subsequent entry into office until after signing in the minute book of the Trustees of the Charities for the poor a declaration of acceptance and of willingness to act in the trusts of this Scheme.

14. *Determination of trusteeship.*—Any Co-optative Trustee who ceases to be qualified as aforesaid any Representative or Co-optative Trustee who is absent from all meetings of the Trustees of the Charities for the poor during a period of one year and any Trustee who is adjudged bankrupt or makes a composition or arrangement with his creditors or who is incapacitated from acting or who communicates in writing to the said Trustees a wish to resign shall thereupon cease to be a Trustee.

15. *Vacancies.*—Upon the occurrence of a vacancy the Trustees of the Charities for the poor shall cause a note thereof to be entered in their minute book at their next meeting and in the case of a vacancy in the office of Representative Trustee shall cause notice thereof to be given as soon as possible to the Borough Council. Any competent Trustee may be reappointed. A casual vacancy in the office of Representative Trustee may be filled by the Borough Council but the person appointed thereto shall be entitled to hold office only for the residue of the term for which the vacating Representative Trustee was appointed. No vacancy in the office of Co-optative Trustee shall be filled until after the lapse of one calendar month from its occurrence.

16. *Meetings and proceedings.*—The meetings and proceedings of the Trustees of the Charities for the poor shall be regulated by the following provisions:—

- (1) The Trustees shall hold at least two ordinary meetings in each year;
- (2) The first meeting of the Trustees shall be summoned by the said Mayor or if he fails for two calendar months after the date of this Scheme to summon a meeting by any two of the Trustees;
- (3) The Trustees at their first ordinary meeting in each year shall elect one of their number to be chairman of their meetings until the commencement of the first ordinary meeting in the following year. The chairman shall always be eligible for re-election. If at any meeting the chairman is not present within ten minutes after the time appointed for holding the same or there is no chairman the Trustees present shall choose one of their number to be chairman of the meeting;
- (4) A special meeting may be summoned at any time by the chairman or any two Trustees upon four days' notice being given to all the other Trustees of the matters to be discussed;
- (5) There shall be a quorum when six Trustees are present at a meeting;

- (6) Every matter shall be determined by the majority of votes of the Trustees present and voting on the question. In case of equality of votes the chairman of the meeting shall have a casting vote whether he has or has not previously voted on the same question but no Trustee in any other circumstances shall give more than one vote.

17. *General power to make regulations.*—Within the limits prescribed by this Scheme the Trustees of the Charities for the poor shall have full power from time to time to make regulations for the management of the Charities for the poor and for the conduct of their business including the summoning of meetings the deposit of money at a proper bank and the custody of documents.

18. *Clerk and treasurer.*—The Trustees of the Charities for the poor may appoint fit persons to be their clerk and treasurer to hold office during their pleasure and may pay to each of them (not being a Trustee) such reasonable salary as they think fit. The treasurer shall be responsible for getting in and receiving the rents and profits belonging to the Charities for the poor and for performing such other duties as the Trustees of the Charities for the poor may reasonably require and shall give such security for the due performance of his duties as they direct.

19. *Allotments Extension Act 1882.*—The Trustees of the Charities for the poor may set apart and let in allotments in the manner prescribed by and subject to the provisions of the Allotments Extension Act 1882 any portion of the land belonging to the Charities for the poor other than buildings and the appurtenances of buildings.

20. *Management and letting of lands.*—Subject as aforesaid all the lands belonging to the Charities for the poor not required to be retained or occupied for the purposes thereof shall be let and otherwise managed by the Trustees thereof. In every case public notice of the intention to let any land shall be given by the said Trustees in such manner as they consider most effectual for ensuring full publicity. The said Trustees shall not create any tenancy in reversion after more than 3 years of any existing term or for more than 21 years certain or for less than the improved annual value at rackrent without the sanction of the Charity Commissioners or a competent Court.

21. *Leases.*—The Trustees of the Charities for the poor shall provide that on the grant by them of any lease the lessee shall execute a counterpart thereof. Every lease shall contain covenants on the part of the lessee for the payment of rent and all other usual and proper covenants applicable to the property comprised therein and a proviso for re-entry on non-payment of the rent or non-performance of the covenants.

22. *Repair and insurance.*—The Trustees of the Charities for the poor shall keep in repair and insure for full value against fire all the buildings of the Charities for the poor not required to be kept in repair and insured by the lessees or tenants thereof.

23. *Expenses of management.*—The Trustees shall first defray out of the income of the Charities for the poor the cost of repairs and insurance and all other charges and outgoings payable in respect of the property

of the Charities for the poor and all the proper costs charges and expenses of and incidental to the administration and management thereof.

24. *Beneficiaries.*—The beneficiaries of the Charities for the poor shall be poor persons resident in the Borough of Chatham as for the time being constituted from time to time.

25. *Benefits of Charities.*—Subject to the payments aforesaid the Trustees of the Charities for the poor shall apply the yearly income of the Charities for the poor under one or more of the following heads for the benefit of the beneficiaries in such way as the said Trustees consider most advantageous to the recipients:—

I. The payment of weekly allowances being in no case except with the approval of the Charity Commissioners less in value than 2s. 6d. a week or more than 10s. a week during the pleasure of the Trustees of the Charities for the poor to or for the benefit of beneficiaries who from age ill-health accident or infirmity are wholly or in part unable to maintain themselves by their own exertions in augmentation of any means of support possessed by the recipients which shall be proved to the satisfaction of the said Trustees to be reasonably assured Provided that—

(1) The said Trustees instead of paying the whole amount of the weekly allowance to any recipient in money may from time to time expend the whole or any portion thereof for his or her benefit as they think fit;

(2) Regulations shall be made for enabling the said Trustees to satisfy themselves that the recipients continue in all respects to possess the required qualifications for assistance;

II. The supply of—

(a) Clothes boots blankets bedding fuel medical or other aid in sickness food or other articles in kind;

(b) Temporary assistance in money by way of loan or otherwise in sickness special distress or unexpected loss;

III. Subscriptions or donations in aid of the funds of any home or hostel established for the residence or care of elderly infirm or homeless persons upon such terms (so far as may be) as to enable the said Trustees to secure the benefits of the home or hostel for the beneficiaries of the Charities for the poor.

26. *Supplemental provisions.*—The application of income under the last preceding clause hereof shall be subject to the following provisions:—

(1) Income shall in no case be applied in relief of rates taxes or other public funds or so that any individual or institution may become entitled to a periodical or recurrent benefit therefrom;

- (2) Assistance to individuals shall be granted only after full investigation of the character and circumstances of the proposed recipients and inquiry whether they have shown reasonable providence and whether and to what extent they may reasonably expect assistance from relations or others;
- (3) The appropriation of the benefits of the Charities for the poor shall be made by the Trustees thereof at meetings of their body and not by any individual Trustee or Trustees. Provided that the said Trustees may appoint from time to time two or more members of their body to be a committee for dealing with any cases of emergency but all acts and proceedings of committees shall be reported in due course to the said Trustees.

GENERAL PROVISIONS

27. *Accounts.*—All proper accounts in relation to the Charities shall in each year be made out and certified in such manner as the Charity Commissioners require and copies thereof shall be transmitted to the said Commissioners in compliance with the provisions of the Charitable Trusts Acts.

28. *Trustees not to be personally interested.*—No Trustee shall take or hold any interest in property belonging to the Charities for the poor otherwise than as a Trustee for the purposes thereof and no Trustee shall receive any remuneration or be interested in the supply of work or goods at the cost of the Charities.

29. *Alteration of Scheme.*—The Charity Commissioners in the exercise of their ordinary jurisdiction may establish from time to time Schemes for the alteration of any of the provisions of this Scheme as if those provisions had been made by the founder in the case of a Charity having a founder.

30. *Questions under Scheme.*—Any question as to the construction of this Scheme or as to the regularity or the validity of any acts done or about to be done under this Scheme shall be determined conclusively by the Charity Commissioners upon such application made to them for the purpose as they think sufficient.

31. *Date of Scheme.*—The date of this Scheme shall be the date of the Act of Parliament confirming the same.

SCHEDULE

CHARITY NUMBERED 1 ABOVE

£1,819 0s. 2d. 2½ per cent. Consolidated Stock standing in the name of the Official Trustees of Charitable Funds.

The following investments standing in the name of Chatham Local Guardians:—

- £40 3½ per cent. Defence Bonds (Conversion Issue).
- £50 3 per cent. Defence Bonds (Conversion Issue).
- £60 3 per cent. Defence Bonds (Fourth Issue).

£150 2½ per cent. Defence Bonds.

£50 3 per cent. Chatham Corporation Housing Bond No. 510.

£325 cash on deposit with the Chatham Trustee Savings Bank on the 31st October 1953.

£133 2s. 11d. cash being unapplied income in hand on the said date.

CHARITY NUMBERED 2 ABOVE

Freehold land situate in Reporton Road in the Metropolitan Borough of Fulham with the houses thereon numbered 1 3 5 7 9 11 13 and 15 Reporton Road subject to divers leases each for a term of 99 years expiring on the 25th December 1978 at yearly rents amounting together to £41 being part of the property comprised in an indenture made the 16th October 1895 between Richard Eccles of the one part and the Guardians and Trustees of the Poor of the Parish of Chatham of the other part and enrolled in the Central Office of the Supreme Court of Judicature on the 21st November 1895.

NOTE.—The above-mentioned freehold land is vested in the Official Trustee of Charity Lands by virtue of an order of the Charity Commissioners of the 24th April 1896.

£740 16s. 9d. 2½ per cent. Consolidated Stock standing in the name of the Official Trustees of Charitable Funds.

£300 3 per cent. Savings Bonds 1965–75 standing in the name of Chatham Local Guardians.

£1 cash on deposit with the Chatham Trustee Savings Bank on the 31st October 1953.

£58 9s. 8d. cash being unapplied income in hand on the said date.

CHARITY NUMBERED 3 ABOVE

The reversionary interest contingent upon the death of Helena Emma Williams and failure of her issue in one moiety of the yearly rents and profits of the residuary real estate and of the yearly income from the residuary personal estate devised by the above-mentioned will of Samson Burford.

CHARITY NUMBERED 4 ABOVE

£465 11s. 10d. 2½ per cent. Consolidated Stock standing in the name of the Official Trustees of Charitable Funds.

The following investments standing in the name of Chatham Local Guardians:—

£7,500 3 per cent. Savings Bonds 1965–75.

£476 17s. 8d. 2½ per cent. Consolidated Stock.

£163 1s. 7d. cash being unapplied income in hand on the 31st October 1953.

Sealed by order of the Board this 22nd day of December 1953.

Ch. ii

*Chatham Intra Charity of
Richard Watts and other Charities
Scheme Confirmation Act, 1955*

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